

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Shakina Griffith	Team: Team # 1	CCRB Case #: 201406681	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 12/05/2013 4:40 AM	Location of Incident: Lanett Avenue and Beach 9th Street	18 Mo. SOL 6/5/2015	Precinct: 101		
Date/Time CV Reported Thu, 07/03/2014 12:23 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Thu, 07/03/2014 12:23 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM James Sgaglione	04139	952228	101 PCT
2. POM Christophe Ghee	16192	944591	101 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM James Sgaglione	Abuse: PO James Sgaglione frisked § 87(2)(b)	A . Unsubstantiated
B . POM Christophe Ghee	Abuse: PO Christopher Ghee searched the car in which § 87(2)(b) was an occupant.	B . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On July 3, 2014, § 87(2)(b) filed a walk-in complaint with the Civilian Complaint Review Board (CCRB) (encl. 6a-d).

This complaint was filed approximately seven months after the date of the incident.

On December 5, 2013, at approximately 4:40 a.m., § 87(2)(b) was pulled over at Lanett Avenue and Beach 9th Street in Queens by PO James Sgaglione and PO Christopher Ghee of the 101st Precinct. The following allegations resulted:

Allegation A- Abuse of Authority: PO James Sgaglione frisked § 87(2)(b)

Allegation B- Abuse of Authority: PO Christopher Ghee searched the car in which § 87(2)(b) was an occupant.

§ 87(2)(g)

§ 87(2)(g), it is recommended that **Allegations A and B** be closed as **Unsubstantiated**.

§ 87(2)(g), § 87(4-b)

Mediation was offered on July 3, 2014 and was rejected.

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male who § 87(2)(b) has black hair and brown eyes.
- § 87(2)(b)

CCRB Statement

In addition to his original complaint, § 87(2)(b) was interviewed at the CCRB on July 3, 2014 (encl. 8a-e) and provided answers to follow-up questions on July 18, 2014 (encl. 9a).

On December 5, 2013, § 87(2)(b) left his home, located at § 87(2)(b) in Queens and headed to work in Montauk. § 87(2)(b) drove a brown two-door Ford pickup truck, which is registered to him. § 87(2)(b) drove on the Nassau Expressway for approximately ten minutes before he realized that he left his cell phone at his residence. § 87(2)(b) turned onto Empire Avenue and turned left onto Beach 9th Street to head back home. As § 87(2)(b) drove, he did not see any officers following him. § 87(2)(b) had been driving for approximately fifteen minutes when, at approximately 4:40 a.m., he was pulled over by a marked vehicle at Beach 9th Street and Hicksville Road. The marked vehicle parked approximately ten feet behind § 87(2)(b)'s truck

and two officers exited the vehicle. PO James Sgaglione of the 101st Precinct, who was identified via investigation, was described as a white male, average build, and in uniform wearing a hat. PO Christopher Ghee of the 101st Precinct, who was identified via investigation, was described as a white male, average build, and in uniform wearing a hat.

PO Sgaglione said “safety check” and requested § 87(2)(b) s license and registration. § 87(2)(b) removed his license and registration from his wallet, which was in his back pocket, and provided the information. Then § 87(2)(b) was instructed to step out of his vehicle and walk to the rear of his vehicle. As § 87(2)(b) exited his vehicle, a second marked vehicle approached, stopped for approximately five seconds, said something to PO Sgaglione, and drove away. The officer said that he wanted to search § 87(2)(b) § 87(2)(b) said that PO Sgaglione had no right to search him and PO Sgaglione said, “Safety check.”

§ 87(2)(b) faced his vehicle and he was instructed to put his hands on his vehicle; § 87(2)(b) complied. PO Sgaglione patted down all four of § 87(2)(b) s pockets, went down his legs, and to his upper body. § 87(2)(b) did not remember where on his upper body PO Sgaglione patted him down. As PO Sgaglione patted him down, § 87(2)(b) said that the officer had no right to search him because he did nothing wrong. The pat down lasted one to two minutes. Through the back window of his truck, § 87(2)(b) saw PO Ghee open the passenger door. PO Ghee entered the truck, looked underneath and behind the bench-like seats, and under the dashboard. PO Ghee’s upper body was inside of the truck and his legs were outside. PO Ghee searched § 87(2)(b) s truck for approximately two minutes. Then PO Ghee walked to where PO Sgaglione and § 87(2)(b) stood. PO Sgaglione asked § 87(2)(b) where he was going, where he was coming from, and if he had been drinking. § 87(2)(b) said that he was on his way to work and denied drinking any alcoholic beverages. PO Sgaglione instructed § 87(2)(b) to re-enter his car and he complied. § 87(2)(b) sat in his vehicle for forty to forty-five minutes. PO Sgaglione drove next to § 87(2)(b) s truck, exited the vehicle, and gave § 87(2)(b) two summonses for disobeying a steady red light and failure to stop at a stop sign. § 87(2)(b) did not see who wrote the summonses. After handing the summonses to § 87(2)(b) PO Sgaglione walked back to his vehicle and re-entered.

§ 87(2)(b) exited his vehicle and asked PO Sgaglione the reason for the summonses. PO Sgaglione instructed § 87(2)(b) to re-enter his vehicle and drove away. § 87(2)(b) continued home to retrieve his cell phone.

NYPD Statements:

Subject Officer: PO JAMES SGAGLIONE

- *PO Sgaglione is a § 87(2)(b) year old white male who § 87(2)(b) has brown hair and brown eyes.*
- *On December 4, 2013, PO Sgaglione worked from 11:15 p.m. to 7:05 a.m. the following morning and was assigned to Sector C. PO Sgaglione worked with PO Christopher Ghee. The officers were in uniform and were assigned to marked vehicle number 3509.*

Memo Book

At 4:40 a.m., PO Sgaglione noted that he observed a vehicle drive south on Empire Avenue. At the intersection of Empire Avenue and Reeds Lane, the vehicle failed to stop for the stop sign. The vehicle also disobeyed a steady red light on Beach 9th Street and Hicksville Road. At 4:41 a.m., a vehicle stop was conducted at Beach 9th Street and Lanett Avenue. § 87(2)(b) drove a

1989 brown Ford pick-up truck. At 4:55 a.m., two summonses were issued to § 87(2)(b) (encl. 10a-c).

Summonses

At 4:40 a.m., PO Sgaglione issued two summonses. Summons number § 87(2)(b) was issued for failure to stop at a stop sign at Empire Avenue and Reads Lane. Summons number § 87(2)(b) was issued for disobeying a steady red light at Beach 9th Street and Hicksville. Summons number § 87(2)(b) noted that § 87(2)(b) exited the vehicle and was instructed to re-enter his vehicle several times. The summons also noted that § 87(2)(b) said, “I’m late for work” (encl. 11a-b).

CCRB Statement

PO Sgaglione was interviewed at the CCRB on August 28, 2014 (encl. 12a-b).

On December 5, 2013, at approximately 4:40 a.m., PO Sgaglione, who was the passenger, and PO Ghee, who was the driver, were conducting stop sign enforcement on Empire Avenue and Reeds Lane in Queens. PO Sgaglione observed § 87(2)(b) driving south on Empire Avenue and he disobeyed a stop sign at Empire Avenue and Reeds Lane. PO Ghee pulled out of his location and followed § 87(2)(b) in an attempt to pull him over. The turret lights and sirens were not activated because § 87(2)(b) was speeding at approximately forty miles per hour. PO Sgaglione was not familiar with the speed limit in the area. PO Sgaglione likes to be four to five car lengths behind a vehicle otherwise the driver would think that the officers are responding to a job. The officers were approximately ten car lengths behind § 87(2)(b)’s vehicle and there were no other vehicles on the road. At Beach 9th Street and Hicksville Road, § 87(2)(b) continued speeding and ran a steady red light. At the time that § 87(2)(b) committed that traffic infraction, the officers were approximately five car lengths behind him. The officers were able to get closer to § 87(2)(b) and the turret lights were activated. § 87(2)(b) was pulled over approximately two blocks later at Beach 9th Street and Lanett Avenue. After § 87(2)(b) pulled over, he exited his vehicle and began to walk toward the officers’ vehicle, which was parked approximately one car length behind § 87(2)(b)’s vehicle. § 87(2)(b) said that he was late for work.

When § 87(2)(b) was at the rear of his vehicle, PO Sgaglione and PO Ghee stepped out of their vehicle and instructed § 87(2)(b) approximately three times to re-enter his vehicle. § 87(2)(b) said that he was late for work. After § 87(2)(b) complied, PO Sgaglione and PO Ghee approached the driver’s window of § 87(2)(b)’s vehicle. § 87(2)(b) asked why he was pulled over and PO Sgaglione explained that he disobeyed a stop sign and a red light. PO Sgaglione asked § 87(2)(b) to provide his license, registration, and proof of insurance. PO Sgaglione asked § 87(2)(b) why he was driving in that manner. § 87(2)(b) said that he worked upstate and that individuals were waiting for him to arrive in order to drive heavy machinery. After § 87(2)(b) provided the information, PO Sgaglione told him to “standby” and the officers re-entered their vehicle, maintaining their original positions. PO Sgaglione denied frisking § 87(2)(b).

As PO Sgaglione wrote the summonses, § 87(2)(b) exited his vehicle a second time and attempted to approach the officers’ vehicle. When § 87(2)(b) stood at the rear of his vehicle, he said that he could not be issued a summons because he had a class A license and that the summons would “screw up” his license. The officers stepped out and instructed § 87(2)(b) approximately three times to re-enter his vehicle. After § 87(2)(b) re-entered his vehicle, the officers re-entered their vehicle and PO Sgaglione continued to write the summonses. PO Sgaglione and PO Ghee exited their vehicle so that PO Sgaglione could give the summonses to

§ 87(2)(b) PO Sgaglione did not see PO Ghee search the vehicle. PO Sgaglione explained to § 87(2)(b) that he was issued two summonses: one for disobeying a red light and another for disobeying a stop sign. PO Sgaglione advised § 87(2)(b) to respond to the summonses in fifteen days. § 87(2)(b) stated that the summonses would “screw up” his job and license. PO Sgaglione stated that § 87(2)(b) would have to take care of the summonses in traffic court. There was a possibility that § 87(2)(b) was under the influence of a stimulant due to his behavior, but the officers did not inquire in regards to that possibility.

As PO Sgaglione and PO Ghee returned to their vehicle, § 87(2)(b) opened the driver’s side door and exited his vehicle. PO Sgaglione turned around and instructed § 87(2)(b) to re-enter his vehicle and told him that he would have to take care of the summonses in traffic court. The officers re-entered their vehicle and drove away.

Subject Officer: PO CHRISTOPHER GHEE

- *PO Ghee is a § 87(2)(b) year old white male who § 87(2)(b) has blonde hair and blue eyes.*
- *On December 4, 2013, PO Ghee worked from 11:15 p.m. to 7:05 a.m. the following day and was assigned to Sector C. PO Ghee worked with PO James Sgaglione. The officers were in uniform and were assigned to marked vehicle number 3509.*

Memo Book

PO Ghee did not have any memo book entries regarding this incident (encl. 13a-c).

CCRB Statement

PO Ghee was interviewed at the CCRB on September 16, 2014 (encl. 14a-b). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

PO Ghee stood on the passenger’s side of § 87(2)(b)’s vehicle and looked through the window to make sure that § 87(2)(b) was not hiding any items. PO Ghee did not remember if the window was open or closed, if he used his flashlight to look through the window, and if he stuck his flashlight through the window. PO Ghee denied searching § 87(2)(b)’s vehicle.

NYPD Document

Computerized Stop, Question, and Frisk Log

According to the computerized Stop, Question, and Frisk Report, there were no reports completed for § 87(2)(b) (encl. 15a).

Summonses for Incident and Disposition

- The dispositions for the summonses have not yet been received.

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of July 28, 2014 with regard to the incident (encl. 16a).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 4a).

Subject Officers CCRB History

- PO Sgaglione has been a member of the service for two years and there are no substantiated CCRB allegations against him (encl. 2a).
- PO Ghee has been a member of the service for seven years and there are no substantiated CCRB allegations against him (encl. 3a).

Conclusion

Identification of Subject Officers

PO Sgaglione and PO Ghee acknowledged interacting with § 87(2)(b)

Investigative Findings and Recommendations

Allegation A- Abuse of Authority: PO James Sgaglione frisked § 87(2)(b)

Allegation B- Abuse of Authority: PO Christopher Ghee searched the car in which § 87(2)(b) was an occupant.

§ 87(2)(b) stated that PO Sgaglione frisked him and PO Ghee searched his vehicle. PO Sgaglione denied frisking § 87(2)(b) he did not see PO Ghee search § 87(2)(b)'s vehicle, and PO Ghee denied searching § 87(2)(b)'s vehicle.

The computerized Stop, Question, and Frisk Log did not show any Stop, Question, and Frisk Reports completed for § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b), it is recommended that

Allegations A and B be closed as Unsubstantiated.

§ 87(4-b), § 87(2)(g)

Team: One

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date